

Amendment No. 2 to HB0069

Crawford
Signature of Sponsor

AMEND Senate Bill No. 133

House Bill No. 69*

by deleting § 2-2-401 in SECTION 1 and substituting:

2-2-401. Verification of eligibility to vote based upon United States citizenship.

(a) The coordinator of elections, in collaboration with the department of safety, shall, prior to January 1, 2028, create a secure, electronic portal through which each county administrator of elections may access information to verify, prior to processing an applicant's application to register to vote, whether the applicant is a United States citizen based upon records on file at the time of issuance of the most recent driver license or identification card or other credential from the department of safety.

(b) In order to create the portal in subsection (a), the coordinator of elections and the department shall enter into an agreement that includes:

(1) The necessary information an administrator must submit through the portal for an applicant registering to vote in order to ensure that only the correct applicant's information is produced;

(2) The parameters of information of an applicant that will be produced to the administrator, including circumstances under which no record is on file or the information submitted by the administrator through the portal results in multiple records returned;

(3) Any temporary alternative method for the verification of citizenship by an administrator in the event that the portal is offline, inaccessible, malfunctioning, or undergoing maintenance;

(4) Circumstances that constitute misuse of the portal, including, but not limited to, accessing information not in connection with an active voter registration application; and

(5) Penalties for misuse of the portal or information from the portal, including, but not limited to, termination of access for the administrator, other individual, or the county.

(c) Information sent and received through the portal developed under this section is confidential and not available for inspection by the public.

(d) If a county administrator rejects an application based upon information received pursuant to this section, the administrator shall provide written notice to the applicant of the applicant's right to appeal the decision in accordance with § 2-2-125.

AND FURTHER AMEND by adding a new § 2-2-403 under SECTION 1 and redesignating the existing § 2-2-403 as § 2-2-404:

2-2-403. Grant funding.

It is the intent that this part be funded by federal grant funding. This part has no effect until such sufficient funding has been obtained.